

ORDER SHEET
IN THE LAHORE HIGH COURT,
LAHORE.
JUDICIAL DEPARTMENT
Crl. Misc.32072-B/2025.

The State and other.

S.No. of order/proceeding.	Date of order/proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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05.08.2025. Hafiz Muhammad Imran, Advocate for the petitioner in Crl. Misc. No.32072-B of 2025 and for respondents No.2 & 3 in Crl. Misc. No.2425-BC/2025.
M/s Muhammad Arslan Yousaf and Syed Fakhar Hussain Shah Gillani, Advocates for the complainant in Crl. Misc. No.32072-B of 2025.
Mr. Muhammad Zeeshan Ghani, Advocate for the petitioner in Crl. Misc. No.2425-BC/2025.
Mr. Amjad Javed, Deputy Prosecutor General and Safdar SI with police record.

Muhammad Uzair (petitioner) has sought his post-arrest bail in case FIR No.2584/2024, dated 26.11.2024, for the offences under Section 420, 468, 471, 406 of PPC, registered with Police Station A-Division, District Okara under the authorship of Qaiser Nadeem complainant, after the same was declined to the petitioner by the learned Addl. Sessions Judge vide order dated 17.01.2025.

2. Qaiser Nadeem, complainant has also sought the cancellation of order dated 23.12.2024, passed by learned Addl. Sessions Judge, whereby respondents/accused namely Raja Danish and Asif Ali were allowed pre-arrest bails.

3. Both the above said petitions, having arisen out of same FIR, are being disposed of through this common order.

4. According to FIR, Muhammad Uzair Bin Rafi, petitioner/accused and his co-accused namely Raja Danish s/o Khalid Mehmood, the owners of K.K. Traders (brokerage shop) purchased paddy crops from the shop of the complainant (Rana Riasat and sons) through co-accused Asif s/o Nazar Muhammad, broker. Above said accused persons issued five cheques in order to discharge the liability of payment of an amount of Rs.5,00,000/- dated 26.09.2024, of an amount of Rs.7,00,000/- dated 30.09.2024, of an amount of Rs.8,00,000/- dated 10.12.2024,. of an amount to Rs.8,00,000/- dated 01.01.2025, of an amount of Rs.9,79,000/-, dated 01.01.2025 respectively of Faisal Bank Limited in the name of Qaiser Nadeem complainant, which were dishonored on presentation with the remarks “signature unauthorized”.

5. Arguments heard. File perused.

6. Petitioner Muhammad Uzair Bin Rafi / accused allegedly purchased paddy crops from the shop of complainant and issued cheques in order to discharge the liability of payment, but signatures upon the cheques were found to be unauthorized. Petitioner was nominated in the FIR with specific role. Ample evidence connecting him with the crime was available on the file. He put his signatures on two cheques in different style, which would to considered as false/forged, whereas the signatures upon remaining three cheques were found to be in other pattern. By doing so, he played serious mischief causing heavy financial loss to complainant. His prima-facie involvement in the crime could not be ruled out. There was nothing on the file to suggest that the case against the petitioner was that one of further inquiry.

7. Main thrust of the learned counsel for the petitioner was on the point that offences under Section 420, 468, 471, 406 of PPC were not falling within embargo contained under Section 497 of Cr.P.C. and in such like cases, grant of the bail was a rule, whereas its refusal was an exception, which was lacking in the present case.

8. Putting of signatures by the petitioner in different style was amount to forgery. Since, cheque is a document which purports to give authority to a person to receive or deliver any money, as such it shall fall within the preview of “valuable security” as defined in Section 30 of PPC. Said provision reads as under:-

Section 30:- Valuable Security. *The word “Valuable security” denote a document which is, or purports, to be a document whereby any legal right is created, extended, transferred, restricted, extinguished or released or whereby any person acknowledges that he lies under legal liability, or has not a certain legal right.*

If any reference in this regard is required that can be had from a precedent judgment “Sachidanand Prasad Vs. Emperor” (AIR 1993 Patna 488), wherein a cheque was treated to be a valuable security and penal provision of Section 467 of PPC was applied upon the forgery of the same. Said offence was fully made out in the present case, which was carrying the penalty of imprisonment for life or imprisonment extending upto 10 years, as such was attracting the prohibitory clause contained under Section 497 of Cr.P.C.

9. *Modus operandi* adopted by the petitioner Muhammad Uzair Bin Rafi was amount to commit the financial murder of the complainant. Circumstances

were presenting a dreadful picture, which were not permitting me to exercise any discretion in favour of the petitioner. He was not entitled to be released on bail by any stretch of imagination.

10. So far as Crl. Misc. No.2425-BC/2025 having been instituted by Qaiser Nadeem complainant was concerned, he has sought cancellation of the order dated 23.12.2024, passed by the learned Addl. Sessions Judge, whereby respondents / accused namely Raja Danish and Asif Ali were allowed extra ordinary relief of pre-arrest bail.

11. Claim of Raja Danish respondent/accused was that he was not business partner of Muhammad Uzair Bin Rafi, who issued disputed cheques. He was running his own business separately. He came up with the plea that he was also defrauded in the business matters by Muhammad Uzair Bin Rafi accused and he has moved his own application seeking the registration of a criminal case against him. Said plea of Raja Danish respondent/accused was involving deeper appreciation, hence, could not be adhered to at this tentative stage. Whether he was defrauded by Muhammad Uzair Bin Rafi, the main accused, or they both were pigeons of the same flock had to be determined during the trial after recording the evidence of the parties, as such said plea was not given much weight by me at this stage.

12. Material collected by IO so far was suggestive of the fact that said respondent/ Raja Danish accused purchased paddy crops from complainant in joint venture, with which Muhammad Uzair Bin Rafi, the main accused, who issued cheques in order to discharge the liability of the payment. Raja Danish respondent/accused was also a privy to the crime. His

prima-facie involvement in the non bailable offence could not be ruled out. He failed to establish any mala-fide or ulterior motive on the part of complainant for his false implication. Pre-arrest bail is an extra ordinary relief, which was available only for innocent persons, therefore, the impugned order dated 23.12.2024, passed by the learned Addl. Sessions Judge to the extent of granting the pre-arrest bail to said accused Raja Danish was factually as well as legally incorrect, hence, liable to be set-aside.

13. Adhering to the case of respondent Muhammad Asif/accused, it was observed by me that he was mentioned in the FIR as broker. The deal of sale and purchase of paddy crops was allegedly made through him. He was having no nexus with the cheques issued by Muhammad Uzair Bin Rafi, the main accused. Possibility cannot be ruled that he was implicated falsely only in order to exaggerate the number of accused. Case regarding him was requiring further inquiry. I therefore, observe that impugned order to the extent of admitting him to extra ordinary relief appears to be just and proper. I therefore, do not think it appropriate to cancel the same to his extent.

14. The nutshell of the above discussion was that post-arrest bail petition instituted by Muhammad Uzair Bin Rafi has no force, hence, **dismissed** and Crl. Misc. No.2425-BC/2025, preferred by Qaiser Nadeem complainant seeking the cancellation of pre-arrest bail stands accepted only to the extent of respondent Raja Danish accused and pre-arrest bail allowed to him stands cancelled. Said petition is being declined regarding respondent Muhammad Asif/accused. Impugned order

dated 23.12.2024 to the extent of granting the pre-arrest
bail to him, is hereby maintained.

(Tanveer Ahmad Sheikh)
Judge

Approved for reporting.

Judge

**Muhammad Ajmal **